

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008037

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: RYAN WAGNER, AN
INDIVIDUAL

vs.

DEFENDANT: JAGUAR LAND ROVER
NORTH AMERICA, LLC, A DELAWARE
LIMITED LIABILITY COMPANY, ET AL

NATURE OF PROCEEDINGS: 1) DEMURRER
2) MOTION - STRIKE

RULING

Jaguar Land Rover North America, LLC's ("Defendant") Demurrer to the Answer is **SUSTAINED** with leave to amend as to the Third, Fifth, Eleventh, Seventeenth, Twenty-First, Twenty Second, Twenty-Fifth, and Twenty-Seventh Affirmative Defenses.

In all other respects it is **OVERRULED**.

Defendant's Motion to Strike is **GRANTED** with leave to amend as to the First, Seventh, Eighth, Ninth, Eighteenth, Twenty-Sixth, Thirty-Sixth, Fortieth, and Fiftieth Affirmative Defenses. It is **DENIED** as to the remaining Affirmative Defenses.

I. PLAINTIFF'S REPLY

Plaintiff's Request to Deem Reply in Support of Demurrer as filed July 10, 2026, is **GRANTED**. The Reply was timely served. It was ultimately filed July 13, 2026, after being rejected by the clerk's office. The Court sees no prejudice from considering the Reply as timely filed.

II. DEMURRER LEGAL STANDARD

The function of a demurrer is to test the legal sufficiency of the challenged pleading. (*Hernandez v. City of Pomona* (1996) 49 Cal.App.4th 1492, 1497.) As a general rule, in testing a pleading against a demurrer, the facts alleged in the pleading are deemed to be true, however improbable they may be. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) The court gives the pleading a reasonable

interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of Univ. of Calif.* (1990) 51 Cal.3d 120, 125.)

In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) The face of the complaint includes matters shown in exhibits attached to the complaint and incorporated by reference. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 317.)

III. DEMURRER DISCUSSION

A. Meet and Confer Efforts

First, as a procedural matter, the Opposition argues that this Court should treat the demurrer as untimely due to lack of “good faith” meet and confer efforts prior to the 30-day extension. The Court declines to do so, finding the objectives of Code of Civil Procedure section 430.41 have been adequately met.

Having so determined, the Court next turns to the merits of the Demurrer.

B. Grounds for Demurrer

The Demurrer is made pursuant to Code of Civil Procedure section 430.20 on the grounds that the challenged affirmative defenses: 1. Do not state sufficient facts to constitute a defense (§ 430.20(a)); and/or 2. Are uncertain, ambiguous, and unintelligible because they fail to plead ultimate facts, fail to refer to the causes of action they are intended to answer, and/or are pled evasively on “information and belief” regarding matters within Defendant's knowledge (§ 430.20(b)).

C. General Demurrer

Plaintiff generally demurs to the Fourth, Sixth, Tenth, Twelfth, Sixteenth, Nineteenth, Twentieth, Thirty-Fifth, Thirty-Seventh, Thirty-Eighth, Thirty-Ninth, Forty-First, and Forty-Second Affirmative Defenses on the ground that they fail to state facts sufficient to constitute a defense.

After review of each affirmative defense (Laches (4th), Statute of Limitations (6th), State-of-the-Art (12th), Implied Warranty Duration (19th), Disclaimer of Damages (20th), Setoff/Recoupment (10th & 16th), “Rodriguez”/Used Vehicle (35th & 42nd), UCL Safe Harbor (37th), and MMWA Challenges (38th, 39th, 41st)) the Court finds each

sufficiently states facts to constitute a defense and is not absolutely barred as matter of law from the face of the answer/complaint.

The general demurrer is therefore OVERRULED.

D. Special Demurrer

Plaintiff specially demurs to the Third, Fifth, Eleventh, Fifteenth, Seventeenth, Twenty-First, Twenty Second, Twenty-Fifth, and Twenty-Seventh Affirmative Defenses on the grounds that they are uncertain, ambiguous, and unintelligible.

Plaintiff argues that the affirmative defenses of Estoppel (3rd), Waiver (5th), Preemption (11th), Comparative Fault (17th), Abuse (21st), Good Faith Dispute (22nd), Negligence of Others (25th), and Alterations (27th) are pled as bare legal conclusions without the requisite "ultimate facts" necessary to provide fair notice of the nature of the defense. (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 384.) With this, the Court agrees. These affirmative defenses are conclusory and not supported by allegations of ultimate facts.

However, Arbitration (15th) is sufficiently pled.

For these reasons the special demurrer to the Third, Fifth, Eleventh, Seventeenth, Twenty-First, Twenty Second, Twenty-Fifth, and Twenty-Seventh Affirmative Defenses is SUSTAINED with leave to amend.

IV. MOTION TO STRIKE LEGAL STANDARD

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subds. (a)-(b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.) "When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend." (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.)

A. MOTION TO STRIKE DISCUSSION

The motion to strike is made pursuant to Code of Civil Procedure sections 435, 436, and 437 on the grounds that the matters to be stricken constitute: 1. Irrelevant and improper matter (Code Civ. Proc., § 436, subd. (a)), including defenses that are legally inapplicable, mere denials ("traverses") improperly pled as affirmative defenses, or procedural surplusage; and 2. False and improper matter (Code Civ. Proc., § 436, subd. (a)), including allegations pled on "information and belief" that are contrary to facts presumptively within Defendant's knowledge and/or possession.

Plaintiff moves to strike the following specific portions of the Answer:

1. First Affirmative Defense (Failure to State Cause of Action): Strike the entire defense (Page 2, lines 3-5) as improper matter because it is a ground for demurrer, not an affirmative defense.
2. Second Affirmative Defense (Unclean Hands): Strike the entire defense (Page 2, lines 8-9) as improper boilerplate pled without supporting facts.
3. Seventh Affirmative Defense (Mitigation of Damages): Strike the entire defense (Page 3, lines 8-11) as improper boilerplate pled without supporting facts.
4. Eighth Affirmative Defense (Good Faith Belief): Strike the entire defense as improper matter because it is a denial of the "willfulness" element, and false matter because Defendant cannot plead its own state of mind on "information and belief."
5. Ninth Affirmative Defense (Complete Performance): Strike the entire defense (Page 3, lines 19-21) as improper matter because it is a mere denial of the element of breach.
6. Thirteenth Affirmative Defense (Economic Loss Rule): Strike the entire defense (Page 4, lines 13-17) as irrelevant matter because the doctrine does not apply to statutory warranty claims.
7. Fourteenth Affirmative Defense (Failure to Provide Notice): Strike the entire defense (Page 4, lines 20-22) as false matter because it contradicts the facts of Plaintiff's repair presentations and improper matter because it denies a condition precedent.
8. Eighteenth Affirmative Defense (Vehicle Fit for Intended Purpose): Strike the entire defense (Page 5, lines 12-16) as improper matter because it is a mere denial of the implied warranty of merchantability.
9. Twenty-Fourth Affirmative Defense (Fees and Costs): Strike the entire defense (Page 6, lines 18-22) as irrelevant matter because it addresses remedies/sanctions, not liability.
10. Twenty-Sixth Affirmative Defense (Good Faith Evaluation): Strike the entire defense (Page 7, lines 11-13) as improper/false matter for the same reasons as the Eighth Defense.
11. Thirty-First through Thirty-Fourth Affirmative Defenses (Punitive Damages): Strike these defenses (Pages 8-9) as irrelevant boilerplate constitutional challenges.

12. Thirty-Sixth Affirmative Defense (UCL Standing): Strike the entire defense (Page 10, lines 7-9) as improper matter because it is a mere denial of the injury element.
13. Fortieth Affirmative Defense (Compliance with Warranty): Strike the entire defense (Page 11, lines 1-4) as improper matter because it is a mere denial of breach.
14. Forty-Third through Forty-Ninth Affirmative Defenses (AB 1755 / SB 26 Procedural Bars): Strike these defenses (Pages 11-12) as irrelevant and false matter because Defendant concurrently pleads that the vehicle is "used" (barring application of the statute) and because Defendant possesses the notice it claims is missing.
15. Fiftieth Affirmative Defense (Additional Defenses): Strike the entire defense (Page 13, lines 3-5) as improper surplusage that attempts to circumvent the code provisions for amendment.

The Motion to Strike is GRANTED with leave to amend as to the First and Fiftieth Affirmative Defense on the grounds that they are not a recognized affirmative defenses.

It is also GRANTED with leave to amend with respect to the Second and Seventh Affirmative Defenses on the grounds that they are boilerplate affirmative defenses, pled without requisite factual allegations, and as to the Eighth, Ninth, Eighteenth, Twenty-Sixth, Thirty-Sixth, and Fortieth Affirmative Defenses on the grounds that they constitute improper denials rather than affirmative defenses.

The Motion to Strike is DENIED on all remaining grounds.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008257

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: KATARINA BORDEAUX	
vs.	
DEFENDANT: AMERICAN HONDA MOTOR CO., INC	

NATURE OF PROCEEDINGS: MOTION – CHANGE OF VENUE

RULING

Defendant American Honda a motion to approve for change of venue, with a request to transfer the case from Marin County, Superior Court of California, to Sacramento County Superior Court, pursuant to Code of Civil Procedure section 397(c).

Defendant asserts that the operative facts and relevant parties have no connection to Marin County. Defendant asserts that the events giving rise to these claims occurred in Sacramento County. Specifically, (1) the Subject Vehicle was purchased from Elk Grove Honda – a dealership located in Sacramento County; (2) the alleged misrepresentations and contractual negotiations occurred in Sacramento County; (3) the Subject Vehicle was exclusively serviced at a dealership in Sacramento County; and (4) all relevant service and diagnostic records are located in Sacramento County.

Plaintiff has not filed a response, nor was an opposition to the venue change filed. The failure to oppose is considered consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c); Local Rule Marin, Civil 2.8G.1.) Defendant's motion is therefore GRANTED in it's entirely.

Defendant to prepare the order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by